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Case Number: 26STCV07394 Hearing Date: September 3, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

BRETT MORGEN, et al.,

Plaintiffs,

vs.

MALINDA PANIAGUA,

Defendant.

Case No.:

26STCV07394

Hearing Date:

September

3, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S

REQUEST FOR DEFAULT JUDGMENT

Background

Plaintiffs Brett Morgen ("Morgen") and E & S Ring Management Corp. ("E&S") (jointly, "Plaintiffs") filed the instant action against Defendant Malinda Paniagua ("Paniagua") on March 6, 2026 alleging four causes of action for (1) defamation/libel/slander; (2) false light; (3) intentional/negligent infliction of emotional distress; and (4) injunctive relief.

On May 22, 2026, the Court Clerk entered default against Paniagua.

Plaintiffs now request default judgment against Paniagua in the total amount of \$5,125.13, comprising only Plaintiffs' request for costs, and seek a permanent injunction against Paniagua. "Plaintiffs do not seek relief on the Third Cause of Action for Intentional/Negligent Infliction of Emotional Distress. Plaintiffs do not seek compensatory damages, punitive damages, prejudgment interest, or attorneys' fees." (Case Summary, ¶ 29.) Plaintiffs also request that the Court retain jurisdiction to enforce the judgment and the permanent injunction.

The statements allegedly made by Paniagua include various statements that Morgen has a "coke problem" and that E&S planned to terminate various employees. (See Compl., ¶¶ 15-22.)

Discussion

Plaintiffs'

Complaint seeks a preliminary injunction to stop Paniagua from engaging in certain actions. Specifically, Plaintiffs' proposed judgement requests that "Defendant Malinda Paniagua is permanently enjoined from: (a) making, publishing, or disseminating any further false statements about Mr. Morgen or E&S, including but not limited to statements

regarding illegal activity and/or drug use; and (b) contacting, communicating with, or attempting to contact or communicate with any E&S employees for the purpose of making false or disparaging statements about Mr. Morgen or E&S.” (Proposed Judgment, ¶ 4.)

“[I]n

order to obtain injunctive relief the plaintiff must ordinarily show that the defendant’s wrongful acts threaten to cause irreparable injuries, ones that cannot be adequately compensated in damages.” ((Intel Corp. v. Hamidi (2003) 30 Cal.4th 1342, 1352.) The First Amendment, the right to freedom of speech, is an important component of the freedoms Americans benefit from; however, “[i]t is well understood that the right of free speech is not absolute at all times and under all circumstances.” ((In re John V. (1985) 167 Cal.App.3d 761, 767.) It follows that “an injunction issued following a trial that determined that the defendant defamed the plaintiff that does no more than prohibit the defendant from repeating the defamation, is not a prior restraint and does not offend the First Amendment.” ((Balboa Island Village Inn, Inc. v. Lemen (2007) 40 Cal.4th 1141, 1148 (Balboa Island).) “Once specific expressional acts are properly determined to be unprotected by the first amendment, there can be no objection to their subsequent suppression or prosecution.” ((Id. at p. 1156.)

Accordingly,

Plaintiffs must demonstrate by a preponderance of the evidence that Paniagua defamed Morgen or that Paniagua placed Morgen in a false light. ((See Masellis v. Law Office of Leslie F. Jensen (2020) 50 Cal.App.5th 1077, 1086 [“Evidence Code section 115 establishes the preponderance of the evidence as the ‘default standard of proof in civil cases.’”].)

A.

First Cause of Action for Defamation (Libel and Slander)

“The

tort of defamation ‘involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.’ [Citation.]” ((Taus v. Loftus (2007) 40 Cal.4th 683,

720.) Libel and slander are both forms of defamation. "Libel is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation." ((Civ. Code, § 45.) "Slander is a false and unprivileged publication, orally uttered, and also communications by radio or any mechanical or other means." ((Id., § 46.) "Certain statements are deemed to constitute slander per se, including statements (1) charging the commission of crime, or (2) tending directly to injure a plaintiff in respect to the plaintiff's business by imputing something with reference to the plaintiff's business that has a natural tendency to lessen its profits. [Citations.] Slander per se is actionable without proof of special damage." (Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90, 106-107 disapproved of on different grounds by Baral v. Schnitt (2016) 1 Cal.5th 376.)

Plaintiffs

assert that "[e]ach element is satisfied here." (Case Summary, ¶ 32.)

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for publication, it "may be written or oral, [and] is defined as a communication to some third person who understands both the defamatory meaning of the statement and its application to the person to whom reference is made.

Publication need not be to the public or a large group; communication to a single individual is sufficient." (Ringle

Associates Inc. v. Maryland Cas. Co. (2000) 80 Cal.App.4th 1165, 1179.)

Plaintiffs assert that "Defendant published false statements to at least four E&S employees via telephone calls and text messages on February 24, 2026, and continuing thereafter." (Case Summary, ¶ 33.) Plaintiffs provide various declarations and exhibits in support from current employees of E&S and previous individuals that worked with Paniagua, who attest to comments she made via text message or over the phone. (See Coffey Decl., ¶ 4 ["On February 24, 2026, at approximately 1:52 p.m., I received a telephone call from Defendant. During this call, Defendant told me that the corporate team was working on a retirement package in order to release my employment."]; Angulo Decl., ¶ 4 ["I'm relieved [sic]. Brett's coke problem is hard to deal with."]; King Decl., ¶ 4 ["On February 24, 2026, at approximately 2:20 p.m., I called Defendant to discuss property landscaping issues. During this call, Defendant told me that 'Corporate' wanted to terminate me and the Senior Service Manager, Patrick Coffey."]; Schmolze Decl., ¶ 5 ["Angel just told me they want to get rid of Will."].) Accordingly, Paniagua's

various comments to third parties satisfies the publication element.

Regarding

falsity, Plaintiffs provide Morgen's declaration, who is the "Officer and Director" of E&S. (Morgen Decl., ¶ 1.) Morgen attests that he never authorized termination or reassignment of Will Aguinaldo, Kimberly King, or Patrick Coffey. (Morgen Decl., ¶¶ 9, 14.) Additionally, Morgen states that the accusation that he uses cocaine or has a "'coke problem' is entirely false and deeply harmful." (Morgen Decl., ¶ 10.) Specifically, Morgen attests that "I do not use cocaine and have never had a 'coke problem.' The accusation that I use cocaine is entirely fabricated. In 2017, I suffered a heart attack during which I flatlined, a fact that is well-known at E&S and is a matter of public knowledge. The notion that I—a cardiac patient—would use cocaine is false and absurd." (Morgen Decl., ¶ 11.) Accordingly, Morgen's declaration signed under penalty of perjury demonstrates the falsity of Paniagua's statements.

As

for the third element of defamatory statements, Plaintiffs assert that "Defendant's statements are defamatory because they would reasonably be understood as factual assertions that attack Mr. Morgen's character, integrity, judgment, professional reliability, and fitness to perform his work as both a documentary filmmaker and an Officer and Director of E&S." (Case Summary, ¶ 35.) Regarding the usage of cocaine, Plaintiffs contend that "[t]he accusation that Mr. Morgen has a 'coke problem' is defamatory on its face: it charges him with illegal cocaine use—i.e., possession or use of a controlled substance under Health & Safety Code § 11350—and portrays him as someone who suffers from substance abuse, exercises impaired judgment, and cannot be trusted by employees, studios, investors, collaborators, and business partners." (Ibid.) Plaintiffs further contend that "[t]he statement is not a vague insult or mere rhetorical hyperbole; in ordinary usage, saying that a person has a 'coke problem' conveys that the person uses cocaine, has a drug problem, and lacks the stability, discipline, and judgment expected of a professional and executive. That accusation is particularly damaging because Mr. Morgen's career in the documentary film industry depends on trust, credibility, and sound judgment, and Mr. Morgen is personally aware that even false accusations of drug use can permanently damage a filmmaker's ability to secure projects, attract investment, and maintain professional relationships." (Ibid.)

As for the false termination statements, Plaintiffs assert that they "are likewise defamatory because they portray Mr. Morgen as a dishonest, secretive, and untrustworthy executive who was secretly planning to terminate loyal

employees while concealing those plans from them. Coffey Decl., ¶ 4; Schmolze Decl., ¶ 5; King Decl., ¶ 4. Such statements would reasonably cause employees to distrust Mr. Morgen's leadership, question his candor, doubt his loyalty to E&S's workforce, and view him as someone who concealed material employment decisions from the employees whose confidence he needed to maintain. In that way, the termination statements attacked Mr. Morgen's integrity, judgment, credibility, and fitness to perform his executive and business responsibilities." (Ibid.) Based on the foregoing assertions, the Court finds that statements regarding false terminations and illegal drug use are defamatory.

Next,

regarding the fourth element of unprivileged statements, Plaintiffs assert that "Defendant's statements were made to fellow employees after her termination from E&S. No common law or statutory privilege applies to a former employee who, after being fired, contacts current employees to spread fabricated accusations about management. Defendant's statements serve no legitimate purpose and are not protected by any recognized privilege." (Case Summary, ¶ 36.)

Lastly,

as to "a natural tendency to injure or that causes special damage," Plaintiffs first discuss the cocaine comment. Plaintiffs contend that "[b]ecause Defendant's accusation that Mr. Morgen has a 'coke problem' is defamatory per se, Mr. Morgen need not separately prove special damages; the statement has a natural tendency to injure him for two independent reasons. First, it charges Mr. Morgen with illegal cocaine use... Second, a statement that Mr. Morgen has a 'coke problem' tends to injure Mr. Morgen in his profession, trade, business, and office because his work as a documentary filmmaker depends on the trust of studios, investors, and collaborators, and his role as an Officer and Director of E&S depends on the trust and confidence of employees and business partners." (Case Summary, ¶ 37.) Next, Plaintiffs assert that "Defendant's false statements that E&S intended to terminate employees likewise satisfies the natural-tendency element because they are defamatory per se: they tend directly to injure Mr. Morgen in his profession, trade, business, and office by portraying him as an untrustworthy executive who secretly planned to terminate loyal employees, thereby undermining his credibility and authority as a leader and creating fear and instability within E&S. Cal. Civ. Code § 46(3). Defendant made these statements to E&S employees and managers at multiple

properties—the very audience whose trust and confidence Mr. Morgen needs to operate and lead the company—further demonstrating their natural tendency to injure Mr. Morgen in his professions, business, and office.” (Case Summary, ¶ 38.) Plaintiffs adequately demonstrate that Paniagua’s comments have a tendency to damage Morgen by claiming he uses an illegal drug and intends to fire multiple members of his company’s workforce.

Based

on the foregoing, Plaintiffs demonstrate by a preponderance of the evidence that Paniagua’s comments were defamatory, libelous and slandered Morgen. Accordingly, Plaintiffs demonstrate that judgment should be entered in their favor regarding the first cause of action for defamation.

B.

Second Cause of Action for False Light

“False light is a species of invasion of privacy, based on publicity that places a plaintiff before the public in a false light that would be highly offensive to a reasonable person, and where the defendant knew or acted in reckless disregard as to the falsity of the publicized matter and the false light in which the plaintiff would be placed.” (Mitchell v. Twin Galaxies, LLC (2021) 70 Cal.App.5th 207, 218, internal quotations and citations omitted.) “[E]xcept in cases involving physical intrusion, the tort [of invasion of privacy] must be accompanied by publicity in the sense of communication to the public in general or to a large number of persons as distinguished from one individual or a few.” (Kinsey v. Macur (1980) 107 Cal.App.3d 265, 270.) “[T]he false light tort, [] is primarily intended to protect the integrity of one’s public identity.” (Fellows v. National Enquirer, Inc. (1986) 42 Cal.3d 234, 248, fn. 12.)

Plaintiffs similarly contend that

“[e]ach element is satisfied” (Case Summary, ¶ 41) for the second cause of action. Although defamation and false light are similar, the definition of “publication” accompanying them differs in an important way. Plaintiffs do not meet the standard for publication under false light because the evidence shows the comments Paniagua made were to multiple individuals; there is no evidence that she posted this information on the internet, relayed this information to a crowd, mass-emailed employees at E&S, or any other circumstance that would reach a large audience and meet the standard for publication under false light. Plaintiffs do not show by a preponderance of the evidence that Paniagua cast Morgen in a

false light because they fail to demonstrate the publication element.

Notwithstanding, Morgen may obtain injunctive relief under the defamation cause of action.

C.

The Injunctive Relief Sought is Too Broad

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noted above, “following a trial at which it is determined that the defendant defamed the plaintiff, the court may issue an injunction prohibiting the defendant from repeating the statements determined to be defamatory.” ((Balboa Island, supra, 40 Cal.4th at pp. 1155-1156); (see also Evans v. Evans (2008) 162 Cal.App.4th 1157, 1168 [“[A]n injunction issued following a trial that determined that the defendant defamed the plaintiff that does no more than prohibit the defendant from repeating the defamation, is not a prior restraint and does not offend the First Amendment.”].) “[A]ny permissible [prior restraint] order ‘must be couched in the narrowest terms that will accomplish the pin-pointed objective permitted by constitutional mandate and the essential needs of the public order....’ [Citation.]” (Evans v. Evans, supra, 162 Cal.App.4th at p. 1167.)

As a preliminary matter,

Plaintiffs both seek injunctive relief against Paniagua. However, only Morgen alleges the defamation cause of action that gives rise to injunctive relief. Without a cause of action alleged by E&S, Plaintiffs cannot demonstrate that Paniagua violated the law as to E&S that would allow the Court to restrict Paniagua's fundamental freedoms. Thus, injunctive relief is improper against E&S.

As

for Morgen, Plaintiffs demonstrate that injunctive relief is warranted. As noted above, the specific relief Plaintiffs request is as follows:

“Defendant Malinda Paniagua is permanently enjoined from:

(a) making, publishing, or disseminating any further false statements about Mr. Morgen or E&S, including but not limited to statements regarding illegal activity and/or drug use; and

(b) contacting, communicating with, or attempting to contact or communicate with any E&S employees for the purpose of making false or disparaging statements about Mr. Morgen or E&S.”

(Proposed

Judgment, ¶ 4.) Here, the Court finds Plaintiffs’ request to be far too broad.

First,

under subdivision (a), Plaintiffs request that Paniagua be enjoined from “making, publishing, or disseminating any further false statements about Mr. Morgen or E&S, including but not limited to statements regarding illegal activity and/or drug use.” (Emphasis added.) By including the explicit phrasing “any” and “including but not limited to,” Plaintiffs attempt to seek relief for statements that extend beyond the allegations of the Complaint and what Paniagua is found liable for, which is impermissibly broad. This does not adequately place parameters on the type of false speech. For example, under the phrasing of the relief, Paniagua is enjoined from making any false statements, regardless of whether she unknowingly states false information regarding Morgen. Restricting Paniagua’s speech this broadly creates an impermissible prior restraint, rather than merely prohibiting her from repeating statements which were determined to be defamatory. *Balboa Island*, supra, 40 Cal.4th 1141, is instructive. There, the Supreme Court held that “[t]he injunction in the present case is broader than necessary to provide relief to plaintiff while minimizing the restriction of expression.” ((Id. at p. 1160.) However, the court expressed that “a properly limited injunction prohibiting defendant from repeating statements about plaintiff that were determined at trial to be defamatory would not violate defendant’s right to free speech.” ((Id. at p. 1162.)

Second,

under subdivision (b), Paniagua would be enjoined from “contacting, communicating with, or attempting to contact or communicate with any E&S employees for the purpose of making false or disparaging statements about Mr. Morgen...” (Emphasis added.) Although the injunctive relief requested by Plaintiffs is limited to initiating contact “for the purpose of making false or disparaging statements” and is more specific than the previous section, it still lacks clear parameters. Similar to here, in *Balboa Island*, the Supreme Court stated that “[t]he

injunction prohibits Lemen from 'initiating contact with individuals known to Defendant to be employees of Plaintiff.' We agree with the Court of Appeal that this restriction 'sweeps more broadly than necessary' because it 'includes no time, place, and manner restrictions but prohibits Lemen from initiating any type of contact with a known Village Inn employee anywhere, at any time, regarding any subject.'" (Balboa Island, 40 Cal.4th at p. 1161.) Here, Plaintiffs' injunction request is more limited than the request in Balboa, but Plaintiffs still do not adequately narrowly tailor the request to provide clear parameters and restrictions.

In light of the foregoing, the Court denies Plaintiffs request for default judgment and injunctive relief without prejudice. Plaintiffs' requested relief is far too broad and must be narrowly tailored so that it is not an impermissible prior restraint on Paniagua's rights.

Conclusion

Based on the foregoing, the Court denies Plaintiffs' request for default judgment without prejudice. To obtain injunctive relief, Plaintiffs' proposed judgment must be narrowly tailored to include only the specific defamatory statements already expressed by Paniagua as plead in the complaint.

DATED: September
3, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court